

		counsel for Plaintiff, Jessica Gomez, no later than thirty (30) days after receiving notice of this Order. Plaintiff shall give notice.
8.	<u>30-2024-01444459-CU-WT-NJC</u> Park vs. Optimum Professional Property Management, Inc.	Before the Court are the following five (5) motions: a Motion to Compel Further Responses to Form Interrogatories (“MF-FROG”), Set One, and Sanctions, brought by Plaintiff Frank Park (“Plaintiff”) against Defendant Optimum Professional Property Management, Inc. (“Optimum”); a Motion to Compel Further Responses to Requests for Production (“MF-PROD”), Set One, and Sanctions; brought by Plaintiff against Optimum; a Motion to Compel Initial Responses to Form Interrogatories (“MI-FROG”), Set One, and Sanctions, brought by Plaintiff against Defendant ADP TotalSource, Inc. (“ADP”); a Motion to Compel Initial Responses to Requests for Production (“MI-PROD”), Set One, and Sanctions, brought by Plaintiff against ADP; and a Motion for Relief from Waiver of Discovery Objections brought by ADP. ROAs 50, 59, 95, 100, 161. The underlying controversy involves claims of disability discrimination and wrongful termination. ROA 2. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.300, compelling Optimum to provide further responses to Plaintiff’s General Form Interrogatories (“FROG”), Set One, Nos. 1.1 and 12.1; and Plaintiff’s Employment Law Form Interrogatories (“E-FROG”), Set One, Nos. 200.3, 201.1, 201.3, 201.6, 201.7, 206.3, 207.2, 209.2, 211.1, and 216.1. ROA 50, p.2; ROA 148; ROA 190, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon Optimum in the amount of \$19,280.00 for the costs associated with bringing his MF-FROG. ROA 50, p.2.

	Plaintiff also seeks an order, pursuant to California Code of Civil Procedure Section 2031.310, compelling Optimum to provide further responses to Plaintiff's Requests for Production ("PROD"), Set One, Nos. 22-26, 54-56, 62, 64-66, 68, 74, and 75. ROA 59, p.2; ROA 148; ROA 188, ¶ I. Plaintiff also seeks the imposition of monetary discovery sanctions upon Optimum in the amount of \$16,246.65 for the costs associated with bringing his MF-PROD. ROA 59, p.2. Additionally, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2030.260, compelling ADP to provide verified responses to Plaintiff's FROG, Set One, and E-FROG, Set One, without objections. ROA 95, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon ADP in the amount of \$7,995.01 for the costs associated with bringing his MI-FROG. <i>Id.</i> Lastly, Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2031.260, compelling ADP to provide verified responses, without objections, to Plaintiff's PROD, Set One, and to produce all responsive documents. ROA 100, p.2. Plaintiff also seeks the imposition of monetary discovery sanctions upon ADP in the amount of \$6,107.97 for the costs associated with bringing his MI-PROD. <i>Id.</i> In total, Plaintiff seeks \$49,629.63 in monetary discovery sanctions. ADP requests that the Court deny Plaintiff's MI-FROG, Set One, grant ADP relief from waiver of objections to Plaintiff's FROG and E-FROG, Set One, and impose monetary discovery sanctions upon Plaintiff in the amount of \$7,995.01 for the cost associated with opposing Plaintiff's motion. ROA 169, p.2. ADP also requests that the Court deny Plaintiff's MI-PROD, grant ADP relief from waiver, and impose monetary discovery sanctions upon Plaintiff in the amount of \$6,107.97 for the costs borne by ADP in opposing Plaintiff's motion. ROA 171, p.2. In total, ADP seeks \$14,102.98 in monetary discovery
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		sanctions. Optimum requests that the Court deny Plaintiff's MF-PROD, Set One, and MF-FROG, Set One, in their entirety. ROA 175, ¶ IV; ROA 177, ¶ IV. Motions to Compel Initial Responses to Discovery Requests and Relief from Waiver of Objections The California Discovery Act requires responses to requests for production and interrogatories within thirty (30) days after service unless extended or shortened by the court through a party's motion, or the parties agree to an alternate deadline. Cal. Civ. Proc. Code §§ 2030.260, 2030.270, 2031.260(a), 2031.270. Section 1010.6 extends this deadline by two (2) court days for notices served by electronic means. Cal. Civ. Proc. Code § 1010.6(a)(3)(B). If the last day to perform an act falls on a Saturday, Sunday, or holiday, the act may be performed on the next court day. Cal. Civ. Proc. Code § 12a(a). Parties may agree to extend the deadline to respond in writing. Cal. Civ. Proc. Code §§ 2030.270 (a)-(b), 2031.270(a)-(b). California Code of Civil Procedure Section 2030.290 provides: [i]f a party to whom interrogatories are directed fails to serve a timely response . . . [t]he party waives any right to exercise the option to produce writings . . . as well as any objection to the interrogatories, including one based on privilege or on the protection of work product. . . ." Cal. Civ. Proc. Code § 2030.290(a). California Code of Civil Procedure Section 2031.300 applies similarly to requests for production. Cal. Civ. Proc. Code § 2031.300(a). A party may be relieved of these waivers only upon motion and only upon the court's determination that <i>both</i> of the following conditions are satisfied: (i) that "[t]he party has subsequently served a response that is in substantial compliance . . . [and] [ii] [t]he party's failure to serve a timely response was the result of mistake, inadvertence, or
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	excusable neglect.” Cal. Civ. Proc. Code §§ 2030.290(a), 2031.300(a). On October 1, 2025, Plaintiff served PROD, FROG, and E-FROG, Set One, on ADP by electronic means. ROA 91, p.2, ¶3; ROA 93, p.3, ¶3. ADP’s deadline to respond was November 4, 2025. Cal. Civ. Proc. Code §§ 12a(a), 1010.6(a)(3)(B), 2030.260, 2030.270, 2031.260(a). On November 11, 2025, having received no initial responses from ADP, Plaintiff emailed ADP demanding that ADP provide responses, without objections, by November 18, 2025, or be subject to court intervention. ROA 91, p.3, ¶6; ROA 93, p.3, ¶6. On November 14, 2025, ADP requested an additional two weeks to provide initial responses. ROA 91, p.3, ¶7. In response, Plaintiff agreed to allow ADP until November 28, 2025, to provide initial responses, but reiterated that the original deadline to respond had expired, was not being extended, and that any additional time allowed to respond would only serve to avoid unnecessary motion practice. ROA 91, Exh. E. Importantly, Plaintiff specifically stated that ADP must provide responses without objections. <i>Id.</i> On December 3, 2025, ADP notified Plaintiff by email that ADP would provide responses no later than December 12, 2025. On December 15, 2025, having <i>still</i> received no initial responses to Plaintiff’s PROD, FROG, and E-FROG, Set One, Plaintiff served MI-PROD and MI-FROG upon ADP. ROA 91, p.33; ROA 93, p.36. On January 23, 2026, ADP provided initial responses to Plaintiff’s FROG, E-FROG, and PROD, Set One, discovery requests. ROA 186, ¶8. In ADP’s motion for relief from waiver of discovery objections, ADP argues that the Court should grant relief because ADP served substantially compliant responses on January 23, 2025 [<i>sic</i>]. ROA 162, ¶ 8. Had the Court only to rely on ADP’s moving papers, there would have been no
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	way for the Court to substantiate ADP's claims because ADP failed to submit their responses to Plaintiff's PROD, FROG, and E-FROG, Set One, to the Court. That would have been sufficient to deny relief from waiver. Perhaps inspired by the spirit of fairness, it is <i>Plaintiff</i> that offers the Court its first opportunity to scrutinize ADP's initial responses to Plaintiff's PROD, FROG, and E-FROG, Set One. <i>See</i> ROA 192, Exhs. A and B; ROA 194, Exh. A. Having thus reviewed ADP's initial responses, the Court finds they are substantially compliant and that ADP has satisfied the first prong for relief from waiver of objections. However, the Court is not convinced by ADP's argument that its failure to serve a timely response is attributable to mistake, inadvertence, or excusable neglect. ADP argues that ADP's counsel failed to serve timely responses because of a medical emergency involving the contemporaneous injury to counsel's child and illness among their family that occurred the week of November 14, 2025. ROA 162, ¶4. On the record before the Court, none of this information was shared with Plaintiff until <i>after</i> Plaintiff filed their motions to compel. Neither does ADP's counsel present evidence of any attempts to coordinate with any among the <i>very</i> deep bench of associates listed on ADP's counsel's website to assist in upholding ADP's statutory obligation to serve timely responses. <i>See</i> Jackson Lewis Locations Page, https://www.jacksonlewis.com/locations/orange-county#people (last visited May 5, 2026). Thus, the Court cannot find ADP's counsel's neglect excusable. Counsel offers no evidence of any efforts to mitigate the failure to provide timely responses, despite knowing they would almost certainly be unable to comply. The argument also fails to explain (i) the nearly two-month delay <i>after</i> counsel's emergency before serving initial responses, and (ii) the approximately twenty-three (23) days before the emergency during which counsel neither served responses nor sought an extension of the thirty (30) day deadline. While the court is sensitive to counsel's misfortune, the Court is not inclined to grant relief from waiver where the
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	failure to provide timely responses was <i>clearly</i> avoidable. Pursuant to the foregoing, the Court finds that the parties did not agree to extend ADP's deadline to file initial responses to Plaintiff's PROD, FROG, and E-FROG, Set One, discovery requests, and that ADP's failure to serve timely responses is not attributable to mistake, inadvertence, or excusable neglect. Consequently, ADP's request for relief from waiver of objections is DENIED, and ADP must provide verified, code compliant responses, without objections, to Plaintiff's PROD, FROG, and E-FROG, Set One. Additionally, ADP is subject to sanctions for failure to provide timely responses to Plaintiff's properly served discovery requests. Code Compliant Responses to Interrogatories A party's response to interrogatories must consist of either: (i) an answer, (ii) an objection, or (iii) the exercise of the party's option to permit inspection or copying of records. Cal. Civ. Proc. Code § 2030.210(a). The responding party has a duty to answer as completely and straightforwardly as the information reasonably available to them permits. Cal. Civ. Proc. Code § 2030.220(a). Incomplete answers or answers that attempt to evade explicit questions are not code compliant. <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 783 (1978). Answers must be fully responsive and may not reference other documents in lieu of a response. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783-84 (finding "it is not proper to answer by stating 'See my Deposition', or 'See my pleading'). If a response requires reference to another document, said document should be summarized and included in a comprehensive response. <i>Id.</i> Responding parties must make a reasonable and good faith effort to obtain the information necessary to provide a complete response, unless the information is equally available to the propounding party. Cal. Civ. Proc. Code § 2030.220(c); <i>see Regency Health Services, Inc. v. Super. Ct.</i>, 64 Cal. App. 4th 1496, 1504-05 (1998) (finding no exemption on the basis of incompetency from the general duty to conduct
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	a reasonable investigation to obtain responsive information to discovery requests). This duty encompasses the responding party's responsibility to provide information available from sources under their control, such as the party's lawyer, agents, employees, family members, and expert trial witnesses. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782; <i>Smith v. Super. Ct.</i>, 189 Cal. App. 2d 6, 12 (1961); <i>Castaline v. City of Los Angeles</i>, 47 Cal. App. 3d 580, 588 (1975) (stating that "[w]hile a corporation or public agency may select the person who answers interrogatories . . . it has a corresponding duty to obtain information from <i>all sources</i> under its control . . . which may not be personally known to the answering agent) (emphasis added). If a party is still unable to provide a complete response after making a reasonable effort to obtain the requested information, they must specify why the information is unavailable and detail the efforts they made to obtain it. <i>Deyo, supra</i>, 84 Cal. App. 3d at 782. Finally, responses must be truthful. <i>Deyo, supra</i>, 84 Cal. App. 3d at 783 (stating "[p]arties . . . are required to state the truth, the whole truth, and nothing but the truth in answering written interrogatories."). Objections must be stated individually, must specifically reference the interrogatory to which they are directed, and must clearly set forth the specific ground for the objection. Cal. Civ. Proc. Code §§ 2030.210(c), 2030.240(b). Blanket objections to an entire set of interrogatories and "boilerplate" objections, although sanctionable, are considered sufficient to preserve only objections raised on the grounds of attorney-client or attorney work product privileges, but only if they are timely served. <i>Korea Data Systems Co. v. Super. Ct.</i>, 51 Cal. App. 4th 1513, 1516 (1997). The responding party bears the burden of substantiating its objections to interrogatories. <i>Coy v. Super. Ct. of Contra Costa Cnty</i>, 58 Cal. 2d 210, 220 (1962). When objecting to interrogatories, responding parties must show "facts from which the trial court might find that the interrogatories
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	were interposed <i>for improper purposes</i>.” <i>Id.</i> (emphasis added). Objections on the grounds that a discovery request is vague or ambiguous are valid “only if the question or request is wholly unintelligible or precludes an intelligent reply.” Cal. Judges' Benchbook Civ. Proc. Discovery § 5.5. For interrogatories and requests for Admission, “[w]hen a question is somewhat ambiguous, but ‘the nature of the information sought is apparent,’ the question must be answered.” <i>Id.</i> (citing <i>Deyo, supra</i>, 84 Cal. App. 3d at 783). If a court determines that a request for admission or interrogatory is “too ambiguous to allow intelligent reply,” it may either sustain the objection or order the question rephrased. <i>Cembrook v. Super. Ct In and For City and Cnty of San Francisco</i>, 56 Cal. 2d 423, 430 (1961). That the form of a question is compound or that it assumes facts are not valid objections to form interrogatories that are not significantly edited by the propounding party. <i>West Pico Furniture Co. of Los Angeles v. Super. Ct. In and For Lost Angeles Cnty</i>, 56 Cal. 2d 407, 421 (1961) (emphasizing that the rules for written interrogatories are <i>not</i> the same as those for taking oral depositions). Further, California Code of Civil Procedure Section 2030.060 specifically prohibits a “specially prepared interrogatory” from containing subparts or any compound, conjunctive, or disjunctive questions. Cal. Civ. Proc. Code § 2030.060(f). No such prohibition exists for form interrogatories. That a form interrogatory calls for a legal conclusion is also not a valid objection to an unedited form interrogatory. <i>West Pico, supra</i>, 56 Cal. 2d at 417 (stating “[s]uch objection may be proper when the answer is intended to have probative value” but may not be used in discovery to prevent “a party from obtaining information that will lead him to probative facts.”). To sustain an objection on the grounds that a discovery request is irrelevant to the subject matter, a party must show that the “line of questioning cannot, as a reasonable possibility, lead to the discovery of admissible evidence or be helpful in preparation at trial.” <i>Pacific Tel. & Tel. Co. v.</i>
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	<i>Super. Ct.</i>, 2 Cal. 3d 161, 173 (1970). “[I]nformation is relevant if it might reasonably assist a party in <i>evaluating</i> the case, <i>preparing</i> for trial, or <i>facilitating</i> settlement.” <i>Gonzalez v. Super. Ct.</i>, 33 Cal. App. 4th 1539, 1546 (1995) (italics original, internal quotes omitted.) “Admissibility is not the test and information[,] unless privileged, is discoverable if it might reasonably lead to admissible evidence.” <i>Lopez v. Watchtower Bible and Tract Soc’y of New York, Inc.</i>, 246 Cal. App. 4th 566, 591 (2016). When a nonparty’s identity is relevant to the action, a party may be compelled to disclose its name, address, and phone number. <i>Pioneer Electronics (USA), Inc. v. Super. Ct.</i>, 40 Cal. 4th 360, 367 (2007) (citing <i>Hill v. Nat’l Collegiate Athletic Assn.</i>, 7 Cal. 4th 1, 36–37 (1994)). Although disclosure may invade their privacy, there is generally no protection for the identity, addresses, and phone numbers of percipient witnesses. <i>Pioneer</i>, <i>supra</i>, 40 Cal. 4th at 373; <i>see also Alch v. Super. Ct.</i>, 165 Cal. App. 4th 1412, 1426 (2008) (holding that basic identifying and demographic information of percipient witnesses, including names, addresses, and phone numbers, is discoverable, and the trial court erred in failing to strike privacy objections to discovery requests seeking this information). “The objection of [undue] burden is valid only when that burden is <i>demonstrated</i> to result in injustice. <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 418 (emphasis added). To make this showing, a party opposing discovery must make “a factual showing to the trial court of the nature and extent of the trouble and expense . . . entailed in responding to the request for discovery”, and “that the ultimate effect of the burden is incommensurate with the result sought.” <i>Mead Reinsurance Co. v. Super. Ct.</i>, 188 Cal. App. 3d 313, 321 (1986) (quoting <i>West Pico</i>, <i>supra</i>, 56 Cal. 2d at 417); <i>see also Lopez</i>, <i>supra</i>, 246 Cal. App. 4th at 578-79 (rejecting a responding party’s overbreadth objections for failure to support their claims that the request would impose an enormous administrative burden). An objection to a form interrogatory on the grounds that it calls for speculation is invalid. If a responding party is
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		forced to speculate in their response to an interrogatory, it is inevitably attributable to a lack of complete information. In such cases, the responding party is to answer as completely as possible, explain why they cannot presently provide a complete answer, and detail the efforts undertaken to gather the information necessary to provide a complete answer. To sustain an objection on the grounds that a discovery request is cumulative or duplicative, the opposing party must present sufficient facts for the court to determine that “[t]he discovery sought is <i>unreasonably</i> cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome or less expensive”; or that “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” Cal. Civ. Proc. Code § 2019.030. To sustain an objection on the grounds that the information requested is equally available to the propounding party, the respondent must explicitly state that they lack sufficient information to provide a complete response. Cal. Civ. Proc. Code § 2030.220(c). The respondent is relieved from the duty to make a reasonable inquiry to obtain the information from other sources only if those sources are readily available to the propounding party. <i>Id.</i> A respondent may not use this objection to avoid disclosing similar lawsuits against it. <i>See Perkins v. Super. Ct.</i>, 118 Cal. App. 3d 761, 764-75 (1981) (compelling response to interrogatory requesting case information on similar lawsuits where responding party provided no facts indicating the request imposed an undue burden). a. Optimum’s response to Plaintiff’s FROG, Set One, No. 1.1 The Court finds Optimum’s first supplemental response incomplete and evasive as it fails to provide the contact information for all parties listed or detail the efforts taken by Optimum to obtain the facts necessary to provide a complete answer. <i>See</i> ROA 173, pp. 45-46. Accordingly, Optimum must provide a verified, code compliant response
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	to Plaintiff’s FROG, Set One, No. 1.1, without objections. Optimum’s Response to Plaintiff’s FROG, Set One, No. 12.1 Optimum’s third supplemental response objects on the grounds that the term “INCIDENT” is too ambiguous to provide an intelligent reply because it is undefined, and Plaintiff alleges several incidents in his Complaint. ROA 173, p.48 The Court notes that Judicial Council Form DISC-001, Section 4(b) permits the propounding party to specifically define “INCIDENT” for the purposes of specifying to which act the propounding party requires a response. <i>See</i> Jud. Council of Cal. Form DISC-001, Form Interrogatories—General, § 4(b) (Rev. January 1, 2024). Plaintiff did not avail himself of this opportunity to specify to which of the many “wrongful acts” alleged in his complaint he was referring. <i>E.g.</i>, ROA 2, ¶24. Additionally, the option selected by Plaintiff, which defines “INCIDENT” as “the circumstances and events surrounding the alleged accident, injury, or other occurrence or breach of contract giving rise to this action or proceeding,” is not helpful, given that the underlying controversy does not concern an accident, injury, or breach of contract. <i>See</i> ROA 51, p.8. Consequently, Optimum’s objection to Plaintiff’s FROG, Set One, No. 12.1, on the grounds of ambiguity is SUSTAINED. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 200.3 Optimum’s third supplemental response provides a hybrid answer that also raises the following objections: it calls for a legal conclusion, implicates the attorney work product privilege, and violates third-party privacy rights by disclosing their addresses and telephone numbers. ROA 172, p.9. Pursuant to the foregoing discussion, and considering Optimum’s failure to substantiate these objections, the objections on privacy, legal conclusion, and third party privacy grounds are OVERRULED.
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	However, because Optimum raises the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to reserve ruling on this objection and to forego determining whether a further response is required until Optimum provides sufficient factual justification for these objections. Consequently, Optimum must provide sufficient facts substantiating its privilege objections to Plaintiff's E-FROG, Set One, No. 200.3. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.1 Optimum's third supplemental response provides a hybrid answer that also objects on the grounds that the request violates third-party privacy rights in addresses and telephone numbers. ROA 173, p.12. Pursuant to the foregoing, said objection is OVERRULED. Optimum's answer repeatedly refers to "prior document production," which "speak for themselves." ROA 173, pp. 12-13. The Court finds that Optimum's response is not code compliant. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 201.1, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.3 Optimum's third supplemental response provides a hybrid answer and objections on the following grounds: that it calls for legal conclusion; seeks information protected by the attorney work product privilege; violates the privacy interests of third parties in their address and telephone numbers; assumes facts; seeks irrelevant information not likely to lead to the discovery of admissible evidence; and that it is duplicative of Plaintiff's E-FROG, Set One, No. 201.3. ROA 173, p.17. Optimum fails to provide sufficient facts to substantiate its objections to Plaintiff's E-FROG, Set One, No. 201.3, on the grounds that it calls for a legal conclusion, violates third party privacy interests, assumes facts, and seeks irrelevant information; they are therefore OVERRULED.
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	However, because Optimum raises the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to reserve ruling on this objection and to forego determining whether a further response is required until Optimum provides sufficient factual justification for its attorney work product objection. Consequently, Optimum must provide sufficient facts substantiating its privilege objections to Plaintiff's E-FROG, Set One, No. 201.3. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.6 Optimum's third supplementary response provides a hybrid answer that also objects on the grounds that the request violates third parties' protected privacy rights in their addresses and telephone numbers. ROA 173, p.19. That objection is OVERRULED for the reasons stated above. The Court finds that Optimum fails to provide a complete response to subsection (a) of the request and is therefore evasive and not code compliant. <i>See</i> ROA 173, p.19. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 201.6, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 201.7 Optimum's third supplemental response provides a non-compliant, hybrid answer and raises the following objections: that the request is vague and ambiguous as to the term "ADVERSE EMPLOYMENT ACTION" because there are multiple alleged actions raised by Plaintiff; that it presents an undue burden; that it implicates the protected privacy interests of third parties in their address and telephone numbers; and that it assumes facts not in evidence. ROA 173, p.21. For the reasons set forth above, Optimum's objections on the grounds of undue burden and third party privacy interests are invalid and OVERRULED. Because Optimum does not satisfy the factual showing to
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		substantiate its objection on the grounds of undue burden, it, too, is OVERRULED. Additionally, the Court finds that the term “ADVERSE EMPLOYMENT ACTION” is sufficiently defined and composed to include all adverse actions alleged in a complaint. <i>See</i> Jud. Council of Cal., Form DISC-002, p.2 (Rev. January 1, 2009). Consequently, Optimum’s objection on the grounds of ambiguity is OVERRULED. Lastly, the Court finds Optimum’s response to be non-compliant. It is evasive because it fails to address any and all ADVERSE EMPLOYMENT ACTIONS raised in the complaint. <i>See</i> ROA 173, p.21. Accordingly, Optimum must provide a verified, code compliant response to Plaintiff’s E-FROG, Set One, No. 201.7, without objections. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 206.3 Optimum’s first supplemental response provides a hybrid answer and objections on the grounds that the request violates the protected privacy interests of third parties in their contact information and is based on erroneous assumptions of fact. ROA 173, p.22. These objections are neither valid in this context nor substantiated; they are therefore OVERRULED. The Court finds that Optimum’s response is not code compliant. First, it is evasive in that it fails to provide the requested contact information. <i>See</i> ROA 173, p.22. Second, despite acknowledging that it has not provided a complete answer, it fails to specify the efforts made to date to obtain the required information. <i>Id.</i> Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s E-FROG, Set One, No. 206.3, without objections. Optimum’s Response to Plaintiff’s E-FROG, Set One, No. 207.2 Optimum’s first supplemental response provides a hybrid answer and objections, arguing that the request imposes an undue burden and violates the protected privacy interests of third parties in their contact information. ROA 173, p.23. Optimum fails to make the required factual showing to
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		substantiate these objections; they are therefore OVERRULED. The Court finds that Optimum's response is incomplete and evasive. It both fails to provide the requested contact information requested and refers to other documents rather than summarizing their contents in a complete response. <i>See</i> ROA 173, p.24. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 207.2, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 209.2 Optimum's second supplemental response provides a hybrid answer that also objects on the grounds that the interrogatory is not reasonably calculated to lead to the discovery of admissible evidence and seeks information equally available to Plaintiff. ROA 173, p.25. Optimum fails to show how Plaintiff's E-FROG, Set One, No. 209.2, could not reasonably lead to the discovery of admissible evidence, or assist in evaluating the case, preparing for trial, or facilitating settlement. Consequently, Optimum's objection on the grounds of irrelevance is OVERRULED. Additionally, as discussed above, the fact that the information is also available to the propounding party is not a valid objection to a request for information regarding previous similar litigation. Optimum's objection on these grounds is therefore also OVERRULED. The Court finds that Optimum's response is incomplete and evasive. It fails to provide the requested contact information or to detail the efforts made to obtain the missing information. <i>See</i> ROA 173, p.26. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 209.2, without objections. Optimum's Response to Plaintiff's E-FROG, Set One, No. 211.1 Optimum's first supplemental response provides a hybrid
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		answer and objections on the following grounds: that the term “ADVERSE EMPLOYMENT ACTION” is so vague as to preclude an intelligent reply because Plaintiff alleges more than one; that it calls for legal conclusion; that it seeks information protected by the attorney work product privilege; and that it seeks premature disclosure of expert opinion in violation of California Code of Civil Procedure Sections 2034.210, 2034.220, and 2034.270. ROA 173, p.27. The Court finds that the term “ADVERSE EMPLOYMENT ACTION” is sufficiently defined to permit an intelligent reply that addresses every allegation meeting that definition. <i>See</i> ROA 51, p.19 (defining ‘adverse employment action’ “as <i>any</i> termination, suspension, demotion, reprimand, loss of pay, failure or refusal to hire, failure or refusal to promote, or other action or failure to act that adversely affects the employee’s rights or interests and which is alleged in the pleadings.”) (emphasis added). Optimum’s objection on the grounds of ambiguity is OVERRULED. That an interrogatory calls for legal conclusion, calls for speculation, or assumes facts not in evidence are not valid objections to form interrogatories that do not permit the propounding party to incorporate specific inquiries. Here, Plaintiff has made no changes to the form of inquiry. Optimum’s objections to Plaintiff’s E-FROG, Set One, No. 211.1, on these grounds are OVERRULED. Optimum’s objection on the grounds that the interrogatory seeks the premature disclosure of expert opinion is OVERRULED. As discussed above, responding parties have an obligation to answer as fully as the information available to them allows and detail the efforts made to obtain the information that would permit a comprehensive response. Optimum fails to explain why the requested information is beyond their knowledge, why a response would require an expert opinion to provide a complete answer, or the steps taken to secure a qualified expert. Notwithstanding the foregoing, because Optimum invokes the attorney work product privilege but does not substantiate the claim, the Court is forced at this juncture to
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	reserve ruling on this objection and forego determining whether a further response is required until Optimum provides sufficient factual justification for the privilege. Consequently, Optimum must provide a supplemental response that presents sufficient facts substantiating its attorney work-product privilege objection. Optimum's Response to Plaintiff's E-FROG, Set One, No. 216.1 Optimum's first supplemental response provides a hybrid answer and raises the following objections: that it implicates the protected privacy interests of third parties in their contact information; that it assumes that documents or other tangible things are necessary to support Optimum's denials or affirmative defenses; and that the information requested is readily available to or already in Plaintiff's possession, custody, or control. ROA 173, p.31. As discussed above, basic contact information of percipient witnesses is not protected. Optimum's third party privacy objection is therefore OVERRULED. That the interrogatory may or may not assume that documents are necessary to support a respondent's denials or defenses is not a ground to object to the interrogatory. Optimum's objection on these grounds is also OVERRULED. Optimum fails to demonstrate how the requested information is or could already be in the propounding party's possession, custody, or control. Optimum's conclusory objection on these grounds is OVERRULED. The court finds that Optimum's answer is incomplete and evasive because it fails to provide the requested contact information. <i>See</i> ROA 173, p.32. Consequently, Optimum must provide a verified, code compliant response to Plaintiff's E-FROG, Set One, No. 216.1, without objections. Good Cause re: Motions to Compel Further Responses to Requests for Production In addition to a declaration outlining the moving party's efforts to meet and confer in good faith to resolve the
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	underlying discovery disputes, California Code of Civil Procedure Section 2031.310 requires the party seeking to compel further responses to requests for production to “set forth specific facts showing good cause justifying the discovery sought by the demand.” Cal. Civ. Proc. Code § 2031.310(b)(1). To establish good cause, the moving party must satisfy the following requirements set out by the Second District Court of Appeal in <i>Williams v. Superior Court</i>: first, they “must identify a disputed fact that is of consequence in the action[;]” second, they must explain how either (i) “the discovery sought will tend in reason to prove or disprove that fact[,] or will “lead to other evidence that will tend to prove or disprove the fact.” <i>Williams v. Super. Ct.</i>, 187 Cal. Rptr. 3d 321, 325 (2015) (previously published at 236 Cal. App. 4th 1151); see <i>Calcor Space Facility, Inc. v. Super. Ct.</i>, 53 Cal. App. 4th 216, 224 (1997) (vacating an order compelling production where the moving party failed to present “specific facts relating to each category of materials sought to be produced;” offered “mere generalities” as justification for the production; and did not provide “focused, fact-specific justifications for [their] demands.”). a. Plaintiff’s PROD, Set One, No. 66, to Optimum. Plaintiff’s PROD, Set One, No. 66 to Optimum demands “[a]ll documents evidencing, referring to, or reflecting the identity of your owner(s), partner(s), shareholder(s), member(s), officer(s) and/or director(s) from August 1, 2023, to the present.” ROA 57, p.28. As justification to compel a further response, Plaintiff identifies liability for punitive damages as a disputed fact of consequence. ROA 57, p.29. Plaintiff fails, however, to show how disclosure of the identities of those identified in the request will, in reason, tend to prove or disprove their liability. Thus, Plaintiff has not shown good cause to compel a further response to Plaintiff’s RFP, Set One, No. 66, to Optimum. Plaintiff’s PROD, Set One, Nos. 22-26, 54-56, 62, 64, 65, 67, 74, and 75, to Optimum. Pursuant to the foregoing, and having considered both
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	parties' arguments, the Court finds that Plaintiff has satisfied good cause to compel Optimum's further responses to Plaintiff's PROD, Set One, Nos. 22-26, 54-56, 62, 64, 65, 67, 68, 74, and 75. Code Compliant Responses to Requests for Production As a preliminary matter, the Court addresses Optimum's mislabeled responses to Plaintiff's PROD, Set One, Nos. 54 and 55. Having reviewed the record before the Court, the Court finds that Optimum's errors are not detrimental to their responses and that the misnumbered responses are responsive to Plaintiff's intended requests. Responses to requests for production must take the form of either (i) an agreement to comply, (ii) a representation of inability to comply, or (iii) objections. Cal. Civ. Proc Code § 2031.210(a). An agreement to comply is a statement that the party will comply with the demand by the specified date. Cal. Civ. Proc. Code § 2031.210(a). The response must be specific as to what is agreed and must state both: (i) that the production or inspection will be permitted in whole or in part on a specified date; and (ii) that the items demanded that are in the responding party's custody or control, which are not subject to objections, will be produced. Cal. Civ. Proc. Code § 2031.220. Compliance requires that the responding party produce the documents specified in the demand on the date specified, and identify any documents produced with the specific request number to which they respond. Cal. Civ. Proc. Code § 2031.280(a)(b). A statement that the responding party is unable to comply with the demand for production must: (i) affirm that the responding party conducted a diligent search and a reasonable inquiry to locate the demanded item; and (ii) state the reason the party is unable to comply. Cal. Civ. Proc. Code § 2031.230. Acceptable reasons include that "the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. <i>Id.</i> If the responding party either knows or believes that another party has possession,
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	custody, or control of the demanded item, the responding party must state the name and address of said party. <i>Id.</i> A responding party who objects to any item or category requested for production, either in whole or in part, must: (i) identify with particularity the specific document or information demanded to which the responding party objects; and (ii) set forth the specific ground for objection. Cal. Civ. Proc. Code § 2031.240(b). If only part of an item or category of a demand is objectionable, the responding party must provide either a statement of compliance or inability to comply as to the remainder. Cal. Civ. Proc. Code § 2031.040(a). The discussions regarding objections to interrogatories on the grounds that a request is vague and ambiguous, assumes facts not in evidence, is irrelevant or not reasonably calculated to lead to the discovery of admissible evidence, implicates a protected privacy interest, seeks public information equally available to the propounding party, or presents an undue burden are incorporated here for reference and brevity. To sustain an objection on the grounds that a discovery request is cumulative or duplicative, the opposing party must present sufficient facts for the court to determine that either (i) “[t]he discovery sought is <i>unreasonably</i> cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome or less expensive”; or (ii) that “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” Cal. Civ. Proc. Code § 2019.030. Additionally, objections on the grounds that a request seeks confidential commercial information are not valid, nor is proprietary information protected on privacy grounds. <i>Nativi v. Deutsche Bank Nat’l Trust Co.</i> 223 Cal. App. 4th 261, 313-14 (2014). However, California Code of Civil Procedure Section 2031.060 permits courts to direct that “a trade secret or other confidential . . . commercial information not be disclosed, or be disclosed only to specified persons or in a
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		specified way” upon a party's motion accompanied by a meet and confer declaration, and a showing of good cause. Cal. Civ. Proc. Code § 2031.060(a), (b)(5). The same factual information and documentary requirements apply to the Trade Secrets privilege under California Evidence Code Section 1060. Cal. Evid. Code § 1060; <i>Stadish v. Super. Ct.</i>, 71 Cal. App. 4th 1130, 1141 (1999) (finding that a party objecting to the production of documents on the basis of trade secret privilege must do so in accordance with California Code of Civil Procedure Section [2031.300(a)]). The party asserting the trade secret privilege bears the burden of proving it is entitled to that privilege and must show (i) the matter concerns information from which the respondent derives economic actual or potential economic value; (ii) that the information sought is, in fact, a secret or not widely known; and (iii) that the owner has attempted to keep it secret. <i>Amgen Inc. v. Cal. Corr. Health Services</i>, 47 Cal. App. 5th 716, 734 (2020); Cal. Civ. Proc. Code § 3426.1(d). California Evidence Code Section 1157 provides that “[n]either the proceedings nor the records of organized committees of <i>medical . . . staffs</i>, or of a peer review body . . . having the responsibility of evaluation and improvement of the quality of care rendered in the hospital . . . shall be subject to discovery.” Cal. Evid. Code § 1157. The privilege afforded to peer investigations conducted by staff committees is, in effect, equivalent to the attorney client privilege in that there are no exceptions to the privilege, even where requests are narrowly drawn. <i>Cnty of Los Angeles v. Super. Ct.</i>, 139 Cal. App. 4th 8 12-13 (2006). Despite Optimum’s multiple, unsupported assertions to the contrary, aside from the specific protections afforded under Section 1157, there is no recognized “internal investigation privilege.” <i>See generally</i> ROA 57. Thus, if a responding party wishes to make a privilege objection to a request for documents concerning internal investigations, and if those documents do not fall under the auspices of Section 1157, then the responding party must make an appropriate attorney-client or attorney work product privilege
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	objection. Pursuant to California Code of Civil Procedure Section 2031.240(c), “[i]f an objection is based on a claim of privilege . . . the response <i>shall</i> provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.” Cal. Civ. Proc. Code § 2031.240(c) (emphasis added). “The purpose of a ‘privilege log’ is to provide a specific factual description of documents in aid of substantiating a claim of privilege in connection with a request for document production.” <i>Hernandez v. Super. Court</i>, 112 Cal. App. 4th 285, 292 (2003). It is the initial burden of the party asserting the privilege to demonstrate that the requested communication falls within the privilege. <i>Wellpoint Health Networks, Inc. v. Super. Court</i>, 59 Cal. App. 4th 110, 123 (1997). Boilerplate privilege objections, when timely served, are sufficient to preserve them despite their other substantive flaws. <i>See Catalina Island Yacht Club v. Super. Ct.</i>, 242 Cal. App. 4th 1116, 1129 (2015). Accordingly, if a party responding to an inspection demand <i>timely</i> serves a response asserting an objection based on privilege, the trial court lacks authority to order the objection waived even if the responding party fails to serve a privilege log, serves an untimely privilege log, or serves a privilege log that fails either to adequately identify the documents to which the objection purportedly applies or provide sufficient factual information for the propounding party to evaluate the objection. <i>People ex rel. Lockyer v. Super. Ct.</i>, 122 Cal. App. 4th 1060, 1074-75 (2004) (finding “[b]ecause the [responding parties] timely objected on the grounds of privilege, they preserved these objections, regardless of whether the objections were sufficiently detailed in their response or privilege log and the court, as a matter of law, could not find that they had waived these privileges”). The appropriate remedy if the response or a privilege log fails to provide sufficient information to allow the court to rule on the merits is to order the responding party to serve a privilege log and impose sanctions for the deficient
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	response. <i>Catalina Island Yacht Club, supra</i> at 1127; <i>see also</i> Cal. Civ. Proc. Code § 2031.310(h). a. Optimum’s Responses to Plaintiff’s PROD, Set One, Nos. 23, 25, 26, 54-56, 67, and 74 For brevity and efficiency, the Court addresses the above-mentioned responses together, as they are treated similarly. All of Optimum’s responses to these requests raised multiple objections, in addition to either non-compliant agreements to comply or non-compliant statements of inability to comply. <i>See generally</i> ROA 179. Importantly, they all raise objections on the grounds that the requests seek information protected from disclosure by the attorney-client privilege, the attorney work product privilege, or the litigation privilege. <i>Id.</i> The Court finds that Optimum’s objections to all of the responses listed above are not supported by the requisite factual showing to substantiate them. All but the attorney-client and attorney work product privilege objections are therefore OVERRULED. Because Optimum raises the attorney-client and attorney work product privileges, but does not substantiate either claim, the Court is forced at this juncture to reserve ruling on Optimum’s objections to these requests and to forego determining whether further responses are required until Optimum provides sufficient factual justification for these objections. Consequently, Optimum must provide supplemental responses that provide sufficient facts substantiating its privilege objections to Plaintiff’s PROD, Set One, Nos. 23, 25, 26, 54-56, 67, and 74, preferably in a privilege log.. b. Optimum’s Response to Plaintiff’s PROD, Set One, No. 22 Optimum’s third supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.10. Optimum argues that a complete response would require entire court dockets, all pleadings, filings, and discovery materials, deposition transcripts, and every email correspondence between parties to past legal actions, and would therefore
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	present a disproportionate burden to the desired result. <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 22, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 24. Optimum's third supplemental response raises an objection on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, pp. 14-15. Optimum argues that a complete response would require entire court dockets, all pleadings, filings, and discovery materials, deposition transcripts, and every email correspondence between parties to past legal actions, and would present a disproportionate burden to the desired result. The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 24, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 62 Optimum's second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.42. Optimum argues that, as worded, "the request would [] call for every work email that Carly Burns has ever sent for any reason because her email signature block references her job title, Director of Human Resources." <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff's PROD, Set One, No. 62, as worded, is overbroad in scope and presents an undue burden. Optimum's objection is therefore SUSTAINED. Optimum's Response to Plaintiff's PROD, Set One, No. 64 Optimum's second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.44. Optimum argues that, as worded, "the request would [] call for every
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	work email that Jeff Weber has ever sent for any reason because his email signature block references his job title, Director of Community Management.” <i>Id.</i> The Court finds that Optimum has made a sufficient factual showing that Plaintiff’s PROD, Set One, No. 64, as worded, is overbroad in scope and presents an undue burden. Optimum’s objection is therefore SUSTAINED. Optimum’s Response to Plaintiff’s PROD, Set One, No. 65 Optimum’s second supplemental response objects on the grounds that the request is overbroad in time and scope and presents an undue burden. ROA 179, p.45. Optimum argues that, as worded, “the request would [] call for every work email that Tracie Blakenship has ever sent for any reason because her email signature block references her job title, VP of Community Management.” <i>Id.</i> at 45-46. The Court finds that Optimum has made a sufficient factual showing that Plaintiff’s PROD, Set One, No. 65, as worded, is overbroad in scope and presents an undue burden. Optimum’s objection is therefore SUSTAINED. Optimum’s Response to Plaintiff’s PROD, Set One, No. 68 Optimum’s third supplemental response to Plaintiff’s PROD, Set One, No. 68, offers a noncompliant response that also objects on the following grounds: that the request is vague and ambiguous as to the terms “communications” and “you”; that it presents an undue burden; that it seeks information that implicates the right of privacy; and that it seeks trade secret information. ROA 179, p.49. Optimum does not make the required factual showing to substantiate these objections; therefore, they are all OVERRULED. Additionally, Optimum’s response is not compliant. It neither provides an agreement to comply nor a statement of inability to comply that complies with the statutory guidelines. <i>See</i> ROA 179, p.49. Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s PROD, Set One, No. 68, without objections. Optimum’s Response to Plaintiff’s PROD, Set One, No. 75 Optimum’s third supplemental response raises the
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	following objections: that it is vague and ambiguous as to the terms “communications” and “you”; that it is overbroad in time and scope and thus presents an undue burden; that it violates protected privacy interests; and that it is duplicative of Plaintiff’s PROD, Set One, No. 68. ROA 179, p.57. The Court finds that Optimum’s objections are not supported by sufficient facts to substantiate any of them. They are therefore OVERRULED. Optimum’s statement of inability to comply fails to assert whether the particular item or category has ever existed; been destroyed, lost, misplaced, or stolen; or has ever been in Optimum’s possession, custody, or control. <i>Compare</i> Cal. Civ. Proc. Code § 2031.230 <i>with</i> ROA 179, p.59 (stating “Defendant is <i>not</i> in possession, custody, or control of any additional non-privileged responsive documents.”) (emphasis added). Consequently, Optimum must provide a verified, code compliant response to Plaintiff’s PROD, Set One, No. 75, without objections. Sanctions re: Motions to Compel Initial Responses to Discovery Requests California Code of Civil Procedure Sections 2030.290 and 2031.300 require the imposition of mandatory monetary sanctions for a responding party’s failure to timely provide verified, code compliant responses to discovery requests, “unless [the court] finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.290(c), 2031.300(c). The term “substantial justification” means “a justification that ‘is clearly reasonable because it is well grounded in both law and fact.’” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1287 (2024) (quoting <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434, (2011)). To avoid sanctions, an unsuccessful opponent to a motion to compel may show “substantial justification” for his or her position—i.e., a rational basis to conclude that the party's failure to fulfill its discovery obligations was
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	justified. <i>Pollock v. Super. Ct.</i>, 93 Cal. App. 5th 1348, 1358 (2023) (citing <i>Foothill Properties v. Lyon/Copley Corona Associates</i>, 46 Cal. App. 4th 1542, 1557 (1996)). The Court “must make an explicit finding this exception exists,” however, “the court <i>need not</i> make an explicit finding the exception does not exist” <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007) (emphasis added). Here, ADP does not offer, and the Court does not find, substantial justification for ADP’s failure to serve timely responses to Plaintiff’s PROD, FROG, or E-FROG, Set One. Further, the Court finds no reason why the imposition of monetary discovery sanctions upon ADP for this failure would result in any injustice to ADP. Thus, sanctions are proper. Sanctions re: Motions to Compel Further Responses to Requests for Production California Code of Civil Procedure Sections 2030.300 and 2031.310 mandate that courts impose monetary discovery sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses to a discovery demand, absent a finding that the party “subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code §§ 2030.300(d), 2031.310(h). The discussion above regarding substantial justification re: motions to compel <i>initial</i> responses to discovery demands is incorporated here for brevity. Here, Optimum does not offer, and the Court does not find, substantial justification for Optimum’s failure to serve code compliant responses to Plaintiff’s PROD, FROG, or E-FROG, Set One. Further, the Court finds no reason why the imposition of monetary discovery sanctions upon Optimum for this failure would result in any injustice to Optimum. Thus, sanctions are proper. Proper Allocation of Monetary Discovery Sanctions When discovery misuse is clearly attributable to one party, courts should generally sanction only that party. If the <i>client</i> engaged in the misconduct, for example, by refusing to
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		answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. <i>See Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 261 (1993) (finding no liability for counsel for monetary sanctions where client refused to submit to x-rays and attorney's declarations show that the attorney attempted to convince client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. <i>See generally Ghanooni, supra</i>, 20 Cal. App. 4th at 260-261. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. <i>See generally Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020). Here, the Court finds that ADP's failure to serve timely responses to Plaintiff's PROD, FROG, and E-FROG, Set One, is not attributable to client misconduct. Therefore, sanctions are appropriate upon ADP's counsel, Jackson Lewis, P.C., only. Additionally, the Court finds that Optimum's failure to serve code compliant responses to Plaintiff's PROD, FROG, and E-FROG, Set One, is also not attributable to client misconduct. Therefore, sanctions are appropriate upon Optimum's counsel, Jackson Lewis, P.C., only. Determining the Appropriate Amount of Monetary Sanctions Three principles guide the award and amount of attorney's fees and costs imposed as a discovery sanction. <i>See Cornerstone, supra</i>, 56 Cal. App. 5th at 790-91 (compulsion, causation, and reasonableness). "The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs
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	requested as a discovery sanction to reach a reasonable award. <i>Id.</i>, (citing <i>Parker, supra</i>, 149 Cal. App. 4th at 294). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>Marriage of Moore, supra</i>, 102 Cal. App. 5th at 1301 (emphasis added). Pursuant to the foregoing, and after considering Plaintiff’s reasonable calculation of expenses incurred in bringing these motions, the inordinate amount of time required of the Court to address the cavalcade of Optimum’s nuisance objections, and Defendant’s counsel’s gamesmanship, the Court finds that Plaintiff is entitled to a reasonable award of monetary discover sanctions in the amount of \$40,419.02, which is reduced from the total amount requested in proportion to the number of individual disputed requests that Defendant successfully opposed. Ruling Accordingly, the Court issues the following orders: The Court GRANTS IN PART Plaintiff’s Motion to Compel Optimum’s Further Responses to Form Interrogatories, Set One, and Employment Form Interrogatories, Set One, and Sanctions (ROA 50), and ORDERS Optimum to submit facts sufficient to substantiate its claims of attorney client and attorney work product privilege to Plaintiff’s Form Interrogatories—Employment, Set One, Numbers 200.3, 201.3, and 211.1, and provide verified, code compliant responses, without objections, to Plaintiff’s Form Interrogatories—General, Set One, No. 1.1, and Form Interrogatories—Employment, Set One, Nos. 201.1, 201.6, 201.7, 206.3, 207.2, 209.2, and 216.1, no later than (10) days after receiving notice of this Order. The Court GRANTS IN PART Plaintiff’s Motion to Compel Optimum’s Further Responses to Requests for Production, Set One, Sanctions (ROA 59); and ORDERS Optimum to submit a privilege log that provides facts sufficient to substantiate its claims of attorney client and attorney work
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	product privilege to Plaintiff's Requests for Production, Set One, Numbers 23, 25, 26, 54-56, 67, and 74, and provide verified, code compliant responses and responsive documents, without objections, to Plaintiff's Requests for Production, Set One, Nos. 68 and 75, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel ADP's Responses to Form Interrogatories, Set One, and Employment Form Interrogatories, Set One (ROA 95), DENIES ADP's Motion for Relief from Waiver of Discovery Objections (ROA 161), and ORDERS ADP to provide verified, code compliant responses, without objections, to Plaintiff's Form Interrogatories, Set One, and Employment Form Interrogatories, Set One, no later than ten (10) days after receiving notice of this Order. The Court GRANTS Plaintiff's Motion to Compel ADP's Responses to Requests for Production, Set One, and Sanctions (ROA 100); DENIES ADP's Motion for Relief from Waiver of Discovery Objections (ROA 161), and ORDERS ADP to provide verified, code compliant responses and responsive documents, without objections, to Plaintiff's Requests for Production, Set One, no later than ten (10) days after receiving notice of this Order. Finally, the Court IMPOSES monetary discovery sanctions upon Defendants' counsel, Jackson Lewis, P.C, in the total collective amount of \$40,419.02, due and payable to Plaintiff's counsel, Mozaffari Law, P.C., no later than sixty (60) days after receiving notice of this order. Plaintiff shall give notice.
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